

NON-DISCLOSURE AND CONFIDENTIALITY AGREEMENT

Between

**ACME INNOVATIONS INC.
(Disclosing Party)**

and

**BETA ANALYTICS LLC
(Receiving Party)**

NON-DISCLOSURE AND CONFIDENTIALITY AGREEMENT

This Non-Disclosure and Confidentiality Agreement (this "Agreement") is made and entered into as of the Effective Date by and between:

ACME INNOVATIONS INC., a Delaware corporation with its principal place of business at 1209 Orange Street, Wilmington, DE 19801 ("Disclosing Party"), and BETA ANALYTICS LLC, a California limited liability company with its principal place of business at 350 California Street, San Francisco, CA 94104 ("Receiving Party").

Disclosing Party and Receiving Party are collectively referred to as the "Parties."

WHEREAS, Disclosing Party possesses certain proprietary and confidential information, including trade secrets, business strategies, technical specifications, customer data, and financial information; and

WHEREAS, Receiving Party desires to receive such information for the limited purpose of evaluating a potential strategic partnership, investment, or business relationship (the "Purpose"); and

WHEREAS, the Parties wish to establish terms governing the protection, use, and non-disclosure of such information.

NOW, THEREFORE, in consideration of the mutual promises and covenants contained herein, the Parties agree as follows:

1. DEFINITION OF CONFIDENTIAL INFORMATION

1.1. "Confidential Information" means any and all non-public information, regardless of form or medium, disclosed by or on behalf of Disclosing Party to Receiving Party, whether before or after the Effective Date, and whether orally, in writing, electronically, or through observation, that: (a) is marked or designated as "Confidential," "Proprietary," or with a similar legend; (b) is of a nature that a reasonable person would understand to be confidential under the circumstances; or (c) relates to Disclosing Party's business operations, including but not limited to:

- (i) Trade secrets, inventions, know-how, methodologies, algorithms, software source code, and technical architectures;
- (ii) Business plans, strategic roadmaps, marketing strategies, pricing models, and financial projections;
- (iii) Customer and prospect lists, customer contracts, and customer usage data, including any personally identifiable information contained therein;
- (iv) Vendor and supplier relationships, pricing agreements, and supply chain logistics;
- (v) Employee and contractor information, including compensation structures and personnel files;
- (vi) Security protocols, vulnerability assessments, penetration test results, and incident response plans;
- (vii) Product designs, prototypes, specifications, and unpublished patent applications;
- (viii) Merger, acquisition, and financing activities, term sheets, and due diligence materials.

1.2. Confidential Information also includes all notes, summaries, analyses, compilations, derivative works, and other materials prepared by Receiving Party that contain, reflect, or are derived from Confidential Information.

1.3. The existence and terms of this Agreement, and the fact that discussions are taking place between the Parties, shall themselves constitute Confidential Information.

2. OBLIGATIONS OF RECEIVING PARTY

2.1. Receiving Party shall: (a) hold all Confidential Information in the strictest confidence; (b) not disclose, distribute, publish, or otherwise disseminate Confidential Information to any third party without Disclosing Party's prior written consent; (c) use Confidential Information solely for the Purpose and for no other purpose whatsoever; (d) limit access to Confidential Information to those of its employees, officers, directors, agents, and independent contractors who have a genuine need to know for the Purpose, have been informed of the confidential nature of the information, and are bound by written confidentiality obligations at least as protective as those set forth in this Agreement; (e) protect Confidential Information using the same degree of care it uses to protect its own confidential and proprietary information of a similar nature, but in no event less than a reasonable standard of care; (f) not reverse engineer, decompile, or disassemble any software, prototypes, or technical materials provided as Confidential Information; (g) promptly notify Disclosing Party in writing upon discovery of any unauthorized access, use, or disclosure of Confidential Information, and cooperate fully with Disclosing Party in mitigating any resulting harm; and (h) upon Disclosing Party's request or upon termination of this Agreement, return or, at Disclosing Party's option, securely and permanently destroy all copies of Confidential Information in Receiving Party's possession or control, and certify such return or destruction in writing within ten (10) business days.

2.2. Receiving Party shall be fully liable for any breach of this Agreement by its employees, contractors, or agents to whom Receiving Party has disclosed Confidential Information.

3. EXCLUSIONS FROM CONFIDENTIAL INFORMATION

3.1. The obligations set forth in Section 2 shall not apply to information that Receiving Party can demonstrate by competent written evidence: (a) is or becomes publicly available through no act or omission of Receiving Party in breach of this Agreement; (b) was rightfully in Receiving Party's possession, free of any confidentiality obligation, prior to disclosure by Disclosing Party; (c) is rightfully disclosed to Receiving Party by a third party who is not under any obligation of confidentiality with respect to such information; or (d) is independently developed by Receiving Party's personnel who had no access to or use of the Confidential Information.

3.2. A disclosure of Confidential Information required by applicable law, regulation, or valid legal process (including by a court, administrative agency, or governmental authority) shall not constitute a breach of this Agreement, provided that Receiving Party: (a) to the extent legally permitted, gives Disclosing Party prompt written notice of such requirement prior to disclosure; (b) cooperates with Disclosing Party, at Disclosing Party's expense, in seeking a protective order or other appropriate remedy; and (c) discloses only that portion of the Confidential Information that Receiving Party's legal counsel advises is legally required.

4. DATA PROTECTION AND PRIVACY

4.1. To the extent any Confidential Information includes "personal data," "personal information," "protected health information," "nonpublic personal information," or any equivalent term as defined under applicable data protection laws, Receiving Party shall, in addition to its obligations under Section 2:

- (a) Process such data only in accordance with Disclosing Party's documented written instructions, unless required otherwise by applicable law to which Receiving Party is subject, in which case Receiving Party shall inform Disclosing Party of that legal requirement before processing (unless prohibited by such law);
- (b) Implement and maintain appropriate technical and organizational measures to ensure a level of security appropriate to the risk, including: (i) encryption of personal data in transit using TLS 1.3 or higher and at rest using AES-256 or equivalent; (ii) multi-factor authentication for all personnel with access to such data; (iii) pseudonymization and data minimization where technically feasible; (iv) regular testing, assessment, and evaluation of the effectiveness of security measures, including annual penetration testing by an independent qualified assessor; and (v) maintaining written information security policies and incident response plans;
- (c) Ensure that any person authorized to process personal data is subject to a duty of confidentiality, whether contractual or statutory;
- (d) Not transfer personal data outside the United States or the European Economic Area, as applicable, without Disclosing Party's prior written consent and without implementing appropriate safeguards as required by applicable law, including Standard Contractual Clauses or Binding Corporate Rules;

(e) Provide reasonable assistance to Disclosing Party in responding to requests from data subjects exercising their rights under applicable data protection laws (including rights of access, rectification, erasure, restriction, portability, and objection), within ten (10) business days of Disclosing Party's request;

(f) Notify Disclosing Party without undue delay, and in any event within forty-eight (48) hours, upon becoming aware of any personal data breach affecting Confidential Information, providing: (i) a description of the nature of the breach; (ii) the categories and approximate number of data subjects and records affected; (iii) the name and contact details of a point of contact; (iv) the likely consequences of the breach; and (v) the measures taken or proposed to address the breach and mitigate its effects;

(g) Maintain complete and accurate records of all processing activities involving personal data, and make such records available to Disclosing Party and applicable supervisory authorities upon request;

(h) Upon termination of this Agreement, at Disclosing Party's election, securely delete or return all personal data, and delete all existing copies, unless applicable law requires retention of such data.

4.2. Receiving Party shall comply with all applicable data protection laws, regulations, and industry standards, including but not limited to: (a) the General Data Protection Regulation (Regulation (EU) 2016/679) ("GDPR") to the extent it applies; (b) the California Consumer Privacy Act of 2018, as amended by the California Privacy Rights Act of 2020 (collectively, "CCPA/CPRA"); (c) the Health Insurance Portability and Accountability Act of 1996 and its implementing regulations ("HIPAA"), to the extent protected health information is involved; (d) the Gramm-Leach-Bliley Act ("GLBA") and its implementing regulations, to the extent nonpublic personal financial information is involved; and (e) the Digital Personal Data Protection Act, 2023 of India ("DPDPA"), to the extent personal data of individuals located in India is involved.

4.3. Receiving Party shall not sell, share, or otherwise make available any personal data to any third party for monetary or other valuable consideration, or use such data for any purpose other than the Purpose, including for targeted advertising, profiling, or automated decision-making with legal or similarly significant effects.

5. INTELLECTUAL PROPERTY RIGHTS

5.1. All Confidential Information, including all intellectual property rights therein, shall remain the sole and exclusive property of Disclosing Party. Nothing in this Agreement shall be construed as granting, by implication, estoppel, or otherwise, any license, assignment, or transfer of any intellectual property rights from Disclosing Party to Receiving Party.

5.2. Receiving Party acknowledges that the unauthorized use or disclosure of Confidential Information may cause irreparable harm to Disclosing Party for which monetary damages would be an inadequate remedy. Accordingly, Disclosing Party shall be entitled to seek injunctive relief, specific performance, and other equitable remedies for any actual or threatened breach, without the necessity of posting bond or proving actual damages, in addition to any other remedies available at law or in equity.

5.3. Disclosing Party makes no representation or warranty, express or implied, as to the accuracy, completeness, or fitness for any particular purpose of the Confidential Information. All Confidential Information is provided "AS IS."

6. TERM AND SURVIVAL

6.1. This Agreement shall commence on the Effective Date and continue in full force and effect for a period of three (3) years, unless earlier terminated in accordance with Section 6.2.

6.2. Either Party may terminate this Agreement at any time upon thirty (30) days written notice to the other Party. Disclosing Party may terminate this Agreement immediately upon written notice in the event of any breach by Receiving Party.

6.3. The obligations of confidentiality, non-use, non-disclosure, and data protection set forth in Sections 2, 4, and 5 shall survive termination or expiration of this Agreement: (a) indefinitely, with respect to trade secrets and personal data; and (b) for a period of five (5) years following termination, with respect to all other Confidential Information.

7. GOVERNING LAW AND DISPUTE RESOLUTION

7.1. This Agreement and all matters arising out of or relating to it shall be governed by and construed in accordance with the internal laws of the State of Delaware, without giving effect to any choice-of-law or conflict-of-law principles.

7.2. The Parties hereby irrevocably consent to the exclusive jurisdiction and venue of the state courts of the State of Delaware sitting in New Castle County and the United States District Court for the District of Delaware. Each Party waives any objection to venue or any claim of forum non conveniens.

7.3. Prior to initiating any litigation, the Parties shall first attempt to resolve any dispute through good-faith negotiations for a period of at least thirty (30) days. Notwithstanding the foregoing, Disclosing Party may seek injunctive or other equitable relief in any court of competent jurisdiction without prior negotiation.

7.4. THE PARTIES HEREBY WAIVE ANY RIGHT TO TRIAL BY JURY IN ANY ACTION OR PROCEEDING ARISING OUT OF OR RELATING TO THIS AGREEMENT.

8. GENERAL PROVISIONS

8.1. Assignment. Receiving Party may not assign, delegate, or otherwise transfer this Agreement, or any of its rights or obligations hereunder, whether voluntarily or by operation of law, without Disclosing Party's prior written consent. Any purported assignment or transfer in violation of this Section shall be null and void. Disclosing Party may assign this Agreement without Receiving Party's consent to any affiliate or in connection with a merger, acquisition, consolidation, reorganization, or sale of all or substantially all of its assets or equity.

8.2. Severability. If any provision of this Agreement is held by a court of competent jurisdiction to be invalid, illegal, or unenforceable, such provision shall be modified to the minimum extent necessary to make it enforceable, or if modification is not possible, severed from this Agreement, and the remaining provisions shall continue in full force and effect.

8.3. Entire Agreement. This Agreement constitutes the entire agreement between the Parties with respect to the subject matter hereof and supersedes all prior and contemporaneous understandings, agreements, representations, and warranties, whether written or oral. This Agreement may not be modified or amended except by a written instrument signed by authorized representatives of both Parties.

8.4. Waiver. No waiver of any provision of this Agreement shall be effective unless in writing and signed by the Party against whom enforcement of the

waiver is sought. No failure or delay by either Party in exercising any right shall operate as a waiver thereof.

8.5. Notices. All notices under this Agreement shall be in writing and shall be deemed given: (a) upon delivery, if personally delivered; (b) upon confirmation of receipt, if sent by email; or (c) five (5) business days after mailing, if sent by registered or certified mail, return receipt requested, to the addresses set forth in the preamble.

8.6. Independent Contractors. The Parties are independent contractors. Nothing in this Agreement shall be construed to create a partnership, joint venture, agency, or employment relationship between the Parties.

IN WITNESS WHEREOF, the Parties have caused this Agreement to be executed by their duly authorized representatives as of the Effective Date.

ACME INNOVATIONS INC.

BETA ANALYTICS LLC

Signature: _____

Signature: _____

Name: _____

Name: _____

Title: _____

Title: _____

Date: _____

Date: _____